

EXHIBIT "A"

**REAL ESTATE TRANSFER AND DEVELOPMENT
AGREEMENT**

This Real Estate Transfer and Development Agreement ("Agreement") is made and entered into this 20 day of June, 2023 ("Effective Date") by and between the **Brecksville-Broadview Heights City School District** ("District"), a public school district and political subdivision under the laws of the State of Ohio, having an address of 6638 Mill Road, Brecksville, Ohio, 44141, as authorized by District Board Resolution, attached as **Exhibit A**, the **City of Brecksville (the "City")**, a political subdivision under the laws of the State of Ohio and its Charter, having an address of 9069 Brecksville Road, Brecksville, Ohio 44141, as authorized ordinance, attached as **Exhibit B** and Triban Investments, LLC (**the "Triban" or "Developer"**), an Ohio Limited Liability Company, its successors, nominees, assigns and transferees and having an address of 7555 Fredle Drive, Suite 210 Concord, Ohio 44077 (Hereafter collectively referred to as the "Parties").

RECITALS

WHEREAS, the District is the current owner of the property known as Highland School Building located at 9457 Highland Drive, Brecksville, Ohio 44141 and further identified as PPN 603-15-009 and consisting of approximately 20± acres ("Highland" or "District Premises") as further described on the attached **Exhibit D**; and

WHEREAS, the City and District are collaborating in the redevelopment of Highland; and

WHEREAS, the City issued a Request for Proposals seeking statements of qualification and proposals for redevelopment of Highland; and

WHEREAS, the District with the consent of the City have selected Triban to redevelop Highland; and

WHEREAS, the District is willing to transfer Highland to the City of Brecksville's assignee Triban in exchange for receiving the Purchase Price of \$1,100,000.

NOW THEREFORE, in consideration of the covenants herein contained, and other good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the District, City and Triban do hereby agree as follows:

ARTICLE I**TRANSFER OF PROPERTY**

1.1 Conveyance of Highland. Upon the satisfaction of all other requirements and conditions described in this Agreement, the District shall convey to Triban the Highland School with City approval for the Purchase Price of \$1,100,000 payable as follows: \$110,000 earnest

money provided with the Offer to Purchase, \$300,000 payable within 5 business days of City Council authorizing the Mayor for the City of Brecksville (the "Mayor") to sign the contract and the balance at Closing less \$410,000, but prior to September 15, 2023. The \$300,000 payment on May 31, 2023 shall be refundable in the event Purchaser does not complete Closing on the property.

1.2 Transfer. Title shall transfer by recording of quit-claim deed.

1.3 Title Work - As to Highland. Triban shall cause Venture Land Title Agency, LLC/Ohio Real Title Agency, LLC, hereby designated as the "Title Company" and "Escrow Agent" in connection with this transaction with an address of 54 N. State Street, Painesville, Ohio 44077, Phone: 440-354-3300 ("Title Insurer") to examine title and perform a special tax search with respect to the property being transferred and issue a commitment ("binder") for the issuance of an owner's fee policy. If any encumbrances or title defects as to the property being transferred shall appear as exceptions on either binder or otherwise arise on or before the Closing (as defined below), and if either Party ("Objecting Party") notifies the other party ("Notified Party") in writing of its objection, the Notified Party shall have a period not exceeding fifteen (15) calendar days from receipt of such notice to remove such encumbrance or cure such defect at its own expense, although the Notified Party shall not be obligated to do so. If the Notified Party shall be unable or unwilling to remove any such encumbrance or cure any such defect within fifteen (15) calendar days, such Notified Party shall forthwith give written notice to the Objecting Party of its inability or unwillingness to cure such defect. Neither party need object to any monetary liens or encumbrances on the property being transferred to it, and the current owner shall remove same, at such current property owner's sole cost and expense, prior to Closing. If the Title Insurer reports that it is not willing and able to issue an Owner's Policy of Title Insurance (ALTA Form revised 10-17-05) without exceptions for any such encumbrances or defects which the Notified Party has been unable or unwilling to remove, the Objecting Party shall have the option, exercisable within fifteen (15) calendar days after receipt of such notice, to: (a) accept title to the property being transferred to it, subject to said encumbrances and/or defects; or (b) terminate the Agreement by written notice to the Notified Party, upon which no Party shall have any further responsibility or liability hereunder.

1.4 Closing, Costs and Prorations. All documents and funds necessary to complete this transaction shall be placed in escrow with the Title Insurer, or an agent thereof (the "Escrow Agent") no later than five (5) days prior to Closing. Closing of this transaction shall take place, provided all the terms and conditions of this Agreement have been fulfilled as provided in this Agreement, not later than five (5) days after the date all such documents have been deposited in escrow on such date as is mutually agreed to by the Parties, but in no case later than September 15, 2023, except as otherwise extended in writing by the Parties ("Closing Date"). All funds required for transfer of the Property shall be deposited in escrow with the Escrow Agent not later than the Closing Date. This Agreement shall be considered the escrow instructions but shall be subject to the Escrow Agent's standard conditions of acceptance of escrow where not inconsistent with the terms and conditions of this Agreement. The standard conditions of acceptance of escrow shall be made a part of and incorporated into this Agreement by reference, and to the extent such incorporation by reference creates any inconsistencies or ambiguities, the terms and conditions of this Agreement shall control. The Escrow Agent is hereby authorized to close the transaction and to make all prorations and allocations which, in accordance with this

Agreement, are to be made between the Parties. Escrow Agent shall cause Title Insurer to search the title to the property being transferred, and if and when Escrow Agent has received all funds and documents to be deposited in escrow, Escrow Agent shall cause the quit-claim Deed to be filed for record, the Title Policy to be issued to Triban and the funds disbursed in accordance with this Agreement.

The Escrow Agent shall prorate real estate taxes and assessments, both general and special, which are a lien but not yet due and payable, with respect to the property as of the conveyance date, based upon the latest available tax duplicate. The Escrow Agent shall distribute funds to the appropriate party, less any net prorations or credits, shall provide to the Parties a copy of the closing statement and a copy of the recorded quit-claim deed, and shall provide original recorded quit-claim deed to the Parties receiving the property. The Escrow Agent shall be responsible for compliance with the reporting requirements pursuant to Section 6045 of the Internal Revenue Code, including the preparation of Form 1099.

The Escrow Agent shall charge to the party receiving the property the following costs and expenses: (a) all transfer taxes required by law to be paid at the time of the filing of the Deed; (b) the Escrow Fee; and (c) the cost of recording and filing the Deed. The Escrow Agent shall charge to any party receiving a Title Policy the cost of its respective Title Policy.

1.5 Condition and Responsibility for Property. Triban agrees to accept Highland in its present "AS IS" condition. The Parties acknowledge that neither is relying upon any representations, warranties or other information given or supplied by the District with respect to environmental conditions existing on the District's Premises, or other matters in entering into this transaction or developing and constructing its property. District makes no covenant, representation or warranty as to the suitability of the District's Premises for any purposes whatsoever or as to the physical condition of the District's Premises.

1.6 Environmental Assessments. Triban will have thirty (30) business days following the Effective Date to conduct such environmental tests, geotechnical tests and surveys as they deem appropriate and shall have a license to enter upon Highland to do so. In the event Triban believes there is a condition on Highland, in Triban's sole and absolute discretion, Triban may terminate this Agreement (to the extent it relates to Triban) by provision of written notice to the District and City prior to Closing. Within three (3) business days of the Effective Date, the District shall provide Triban with any and all documentation in its actual or constructive possession concerning the environmental condition of Highland, including, without limitation, any and all environmental reports, proposals, invoices, remediation plans, gas or oil leases, agreements, and associated documents, and/or notices concerning any suspected environmental issues at Highland.

1.7 Insurance. The District shall continue to maintain the same insurance coverage on Highland as is in place on the Effective Date until title to Highland is conveyed to Triban in accordance with this Agreement.

ARTICLE II

DEVELOPMENT PLAN

2.1 Legal Descriptions; Surveys. To the extent necessary, Triban shall work with the Title Insurer to develop a legal description in a form approvable by the Cuyahoga County Engineer for inclusion in the Deed for the Highland property and an obtain ALTA survey, or such other form of survey acceptable to Cuyahoga County Engineer's Office, to effectuate the conveyance of the Highland property. In the event such surveys show conditions unacceptable to the party for whom the survey was conducted, that party shall bear the cost and responsibility to remedy such conditions. Notwithstanding the same, each party shall reasonably cooperate with the other party to affect any survey remedies but not to the extent that the cooperating party incurs substantial costs.

2.2 Documents. Upon the request of any party, the District will provide public records that it has relating to Highland.

ARTICLE III

REPRESENTATIONS AND WARRANTIES

3.1 As to District. The District represents and warrants:

- A. The execution, delivery and performance of this Agreement and any related agreements do not or will not violate any provision of any existing law or regulation, order or decree of any court of governmental entity, and do not violate any provisions of, or constitute a default under, any agreement, or contract to which the District is a party, including, but not limited to, any agreements with any governmental agency. Further, all work which has been performed, or which will be performed, by the District in accordance with provisions of this Agreement shall be performed in full compliance with all Federal, State and local laws, rules, ordinances, orders and regulations.
- B. The District has the power to make, deliver and perform this Agreement and has taken, or will take, all necessary action to obtain all necessary or appropriate authorizations for the execution of this Agreement.
- C. In consideration of the conveyances made herein, the District expressly agrees for itself, and on behalf of its heirs, successors, assigns and insurers, as the case may be, that as a condition of the conveyance made herein, that it will commence no claim, legal action and/or litigation against Triban with regard to the conveyance of the Highland property. The parties agree the representations and warranties set forth in Paragraph 3.1 shall survive and not merge on Closing of this transaction.

3.2 As to Triban. Triban represents and warrants:

- A. The execution, delivery and performance of this Agreement by Triban will not violate any provision of any existing law, regulation, order or decree of any court or governmental entity, and will not violate any provisions of, or constitute a default under, any agreement or contract to which it is a party.

- B. Triban has the power to make, deliver and perform as required under this Agreement and has taken all necessary action to authorize the foregoing.
- C. In consideration of the conveyances made herein by the District, Triban expressly agrees for itself, and on behalf of its heirs, successors, assigns and insurers, as the case may be, that as a condition of the conveyance made herein, warrants, covenants and represents that it will commence no claim, legal action and/or litigation against the District with regard to the conveyance of the Highland property. The Parties agree the representations and warranties set forth in Paragraph 3.2 shall survive and not merge on Closing of this transaction.

3.3 As to City. The City represents and warrants:

- A. The execution, delivery and performance of this Agreement and any related agreements do not or will not violate any provision of any existing law or regulation, order or decree of any court of governmental entity, and do not violate any provisions of, or constitute a default under, any agreement, or contract to which the City is a party, including, but not limited to, any agreements with any governmental agency. Further, all work which has been performed, or which will be performed, by the City in accordance with provisions of this Agreement shall be performed in full compliance with all Federal, State and local laws, rules, ordinances, orders and regulations.
- B. The City has the power to make, deliver and perform this Agreement and has taken, or will take, all necessary action to obtain all necessary or appropriate authorizations for the execution of this Agreement.

ARTICLE IV

COOPERATION BETWEEN THE PARTIES; EXECUTION OF OTHER DOCUMENTS

4.1 Cooperation. The Parties acknowledge that the transaction provided for in this Agreement presents a unique opportunity for a cooperative effort. Therefore, Parties intend to cooperate with one another fully by:

- A. Jointly participating in all public hearing processes necessary for any approval from the City of Brecksville or other governmental entity having jurisdiction over the redevelopment of Highland or being conveyed to the respective parties.
- B. Making good faith efforts to adhere to timelines;
- C. Seeking creative solutions to problems;

- D. Executing in a timely manner all other documents and instruments necessary to fulfill the intent of the parties under this Agreement.

ARTICLE V

5.1. Disclaimer:

- A. EXCEPT AS OTHERWISE SPECIFICALLY STATED IN THIS AGREEMENT, THE DISTRICT HEREBY SPECIFICALLY DISCLAIMS ANY WARRANTY, GUARANTY, OR REPRESENTATION, ORAL OR WRITTEN, PAST, PRESENT OR FUTURE OF, AS TO OR CONCERNING THE NATURE AND CONDITION OF THE HIGHLAND PROPERTY, INCLUDING, WITHOUT LIMITATION, THE WATER, SOIL AND GEOLOGY, AND THE SUITABILITY THEREOF AND OF THE HIGHLAND PROPERTY FOR ANY AND ALL ACTIVITIES AND USES WHICH TRIBAN MAY ELECT TO CONDUCT THEREON.
- B. TRIBAN ACKNOWLEDGES THAT IT IS RELYING SOLELY ON ITS OWN INVESTIGATION OF THE HIGHLAND PROPERTY IN ARRIVING AT ITS DECISION TO ACCEPT TITLE TO THE HIGHLAND PROPERTY, AND THAT IT IS OBTAINING THE HIGHLAND PROPERTY IN ITS PRESENT CONDITION, "AS IS, WHERE IS," AND THE DISTRICT HAS NO OBLIGATION TO CONSTRUCT ANY IMPROVEMENTS THEREON, OR TO PERFORM ANY OTHER ACT REGARDING THE HIGHLAND PROPERTY EXCEPT AS OTHERWISE PROVIDED IN THIS AGREEMENT.
- C. ANY FACTUAL INFORMATION SUCH AS HIGHLAND PROPERTY DIMENSIONS, SQUARE FOOTAGE, OR SKETCHES SHOWN TO THE RESPECTIVE PARTY OR SET FORTH HEREIN ARE OR MAY BE APPROXIMATE. NO LIABILITY FOR ANY INACCURACIES, ERRORS OR OMISSIONS IS ASSUMED BY THE DISTRICT OR OTHER RESPECTIVE AGENTS.
- D. THE DISTRICT EXPRESSES NO EXPERTISE WITH RESPECT TO ENVIRONMENTAL MATTERS. PROPER INSPECTIONS OF THE PROPERTY BY QUALIFIED EXPERTS ARE AN ABSOLUTE NECESSITY TO DETERMINE WHETHER OR NOT THERE ARE ANY CURRENT OR POTENTIAL ENVIRONMENTAL CONCERNS RELATING TO THE HIGHLAND PROPERTY. THE DISTRICT HAS NOT, NOR WILL IT MAKE, ANY REPRESENTATION, EITHER EXPRESSED OR IMPLIED, REGARDING THE EXISTENCE OR NON-EXISTENCE OF ANY SUCH ENVIRONMENTAL CONCERNS IN OR ON THE HIGHLAND PROPERTY. PROBLEMS INVOLVING ENVIRONMENTAL CONCERNS CAN BE EXTREMELY COSTLY TO CORRECT. IT IS THE RESPONSIBILITY OF TRIBAN TO RETAIN QUALIFIED EXPERTS TO DEAL WITH THE

DETECTION AND CORRECTION OF SUCH MATTERS. THE PARTIES AGREE THE DISCLAIMERS SET FORTH IN PARAGRAPH 5.1 SHALL SURVIVE AND NOT MERGE WITH CLOSING OF THIS TRANSACTION.

ARTICLE VI

MISCELLANEOUS

6.1 Notices. Any notice required or allowed to be sent under this Agreement shall be either (1) hand-delivered to the other party, and if so hand-delivered shall be effective on the day following its delivery, (2) sent by regular United States mail, and if so sent shall be effective three (3) days following its mailing date, or (3) sent via e-mail, and if so sent shall be effective on the day of delivery.

Any notice to the District shall be addressed to the Superintendent at the address stated above.

Any notice to Triban shall be addressed to its In-House Counsel at the address stated above or e-mail address below.

Knez Homes
7555 Fredle Dr. Suite 210
Painesville, Oh 44077
Attn: Joseph Wittman
JWittman@Knez.Net
440-221-6299

Any notice to the City shall be addressed to the Mayor at the address stated above.

6.2 Governing Law. This Agreement shall be construed under and governed by the laws of the State of Ohio.

6.3 Headings. The paragraph captions or headings contained in this Agreement are for convenience of reference only and are not to be used in the interpretation of this Agreement or as a description, expansion, modification, or limitation of the scope of the particular paragraphs to which they refer.

6.4 Integration. This Agreement contains the complete understanding and agreement of the Parties with respect to the subject matter of this Agreement, and all prior representations, negotiations, and understandings, written or oral, are superseded by and merged into this Agreement. The District shall not be liable or bound to the other Parties in any manner by any agreement, warranty, representation or guarantee with respect to the subject matter of this Agreement, except as specifically set forth in this Agreement or in any instrument executed in accordance with this Agreement. The introductory Recitals to this Agreement and Exhibits attached hereto are expressly incorporated in and made a part hereof by reference as substantive provisions of this Agreement.

6.5 Force Majeure. In the event of enforced delay in the performance by any Party of obligations under this Agreement due to unforeseeable causes beyond its control and without its fault or negligence, including, but not restricted to, acts of God or of the public enemy, acts of the government, fires, floods, epidemics, or severe weather, excluding labor strike, the time for performance of such obligations shall be extended for the period of the enforced delays; provided that the Party seeking the benefit of the provisions of this Section 6.5 shall within a reasonable period of time after the beginning of such enforced delay, have first notified the other Parties in writing of the causes thereof and requested an extension for the period of the enforced delay.

No Party shall be required to perform any term, condition or covenant in this Agreement so long as such performance is prevented by any cause not reasonably within the control of the District, the City, or Triban and which by the exercise of best efforts of each Party unable, wholly or in part, to prevent or overcome. This Section shall not operate to excuse either Party from performance of the terms and remedies set forth in this Agreement.

6.6 Approvals. All consents and approvals required or permitted under this Agreement shall not be unreasonably withheld or delayed, and in the case of the District, shall be given by the Superintendent of School or their successors in such offices, and in the case of Triban shall be given by an individual authorized to sign and in the case of the City shall be given by the Mayor. Each party shall be entitled to conclusively rely on the consent or approval of the other provided that the same is executed by the persons holding the offices or authorized to perform the duties of such offices specified herein.

6.7 Assignment. No Party shall make any assignment of its interest in this Agreement without the written consent of the other Parties.

6.8 Counterparts. This Agreement may be executed in one or more counterparts, each of which will be deemed an original, but all of which taken together will constitute one and the same instrument. Signatures transmitted by electronic means shall be deemed original signatures.

6.9 Severability: Reformation. In the event any provision of this Agreement shall be found to be illegal or unenforceable by a court of competent jurisdiction, then in that event such illegal or unenforceable provision shall be severed from the balance of this Agreement and the balance of the Agreement shall be enforced in accordance with its terms. In the event the court deems the illegal or unenforceable provision to be not severable from the balance of this Agreement, then in that event the parties authorize the court to reform this Agreement in a manner that accomplishes the objectives of the parties as described herein.

6.10 Amendment. This Agreement may only be amended or changed by a writing signed by all Parties hereto.

6.11 Assignee. The City agrees that Triban shall be the City's assignee for the purchase of the property known as Highland School Building located at 9457 Highland Drive, Brecksville, Ohio 44141 and further identified as PPN 603-15-009.

IN WITNESS WHEREOF, the District, the City, and Triban have executed this Real Estate Transfer and Development Agreement as of the Effective Date first written above.

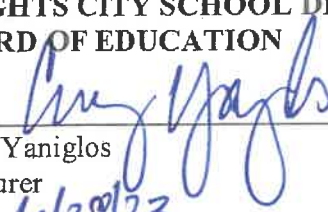
CITY'S ASSIGNEE: Triban Investments, LLC

By: _____

Member

Date: _____

FOR THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT BOARD OF EDUCATION

By:  _____

Craig Yaniglos

Treasurer

Date: 6/28/23

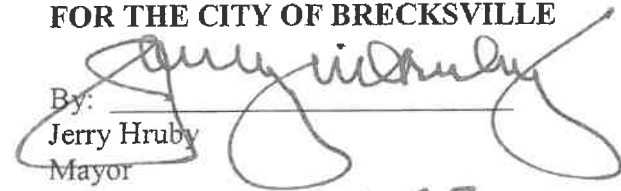
By: _____

Mark Dosen

President Board of Education

Date: _____

FOR THE CITY OF BRECKSVILLE

By:  _____

Jerry Hruby

Mayor

Date: 6.20.23

The following agrees to receive documents and deposits, and to act as escrow agent hereunder:

TITLE AGENCY: Venture Land Title Agency, LLC/Ohio Real Title Agency, LLC

By: _____

Its: _____

Address: 54 N. State Street, Painesville, Ohio 44077

Phone: 440-354-3300

Date: _____

The legal form and correctness of this instrument is approved.

By:  _____

David J. Matty

Director of Law

Date: 6/20/2023

EXHIBIT A

District Board Resolution No. _____

EXHIBIT B

Ordinance No. 5630

ORDINANCE RECORD
COUNCIL OF THE CITY OF BRECKSVILLE

Ordinance No. 5630

**AN ORDINANCE AUTHORIZING THE MAYOR TO ENTER
INTO A REAL ESTATE TRANSFER AND DEVELOPMENT
AGREEMENT WITH THE BRECKSVILLE-BROADVIEW
HEIGHTS CITY SCHOOL DISTRICT AND TRIBAN
INVESTMENTS, LLC FOR PP# 603-15-009 LOCATED
AT 9457 HIGHLAND DRIVE AND DECLARING
AN EMERGENCY**

NOW, THEREFORE, BE IT ORDAINED by the Council of the City of Brecksville, County of Cuyahoga, and State of Ohio, that:

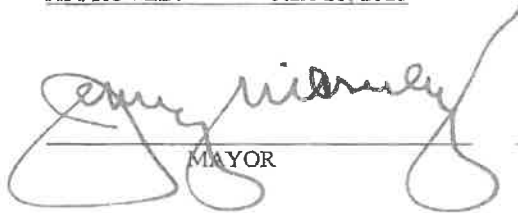
SECTION 1. The Mayor be, and he hereby is, authorized to enter into a Real Estate Transfer and Development Agreement for the transfer and development of real estate with the Brecksville-Broadview Heights City School District and Triban Investments, LLC in the amount of one million, one hundred thousand dollars (\$1,100,000.00) for PP# 603-15-009 located at 9457 Highland Drive, a copy of which Real Estate Transfer and Development Agreement is attached hereto as Exhibit "A" and incorporated herein as if by reference.

SECTION 2. The Council hereby appropriates sufficient funds to effectuate the provisions contained in Section 1 hereof, and the Director of Finance is hereby authorized to transfer the funds necessary to complete this expenditure from the available funds of the City. The Director of Finance be and is hereby further authorized to issue the fiscal officer's certificate necessary to make the expenditures as described in Section 1 hereof, and is further directed to issue vouchers of this City in the amounts and for the purposes as expressed in Section 1 hereof, said amounts to be charged to the appropriately designated Fund.

SECTION 3. The Council declares this Ordinance to be an emergency measure necessary for the immediate preservation of the public peace, health, safety and welfare, the reason for the emergency is the need to enter the agreement, therefore, said Ordinance shall be in full force and effect immediately upon its adoption by this Council and approval by the Mayor, otherwise, from and after the earliest period allowed by law.

PASSED: June 20, 2023

APPROVED: June 20, 2023

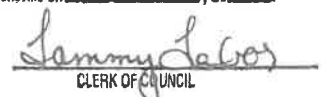


MAYOR



CLERK OF COUNCIL

I do hereby certify that the foregoing is a true and correct copy of Ordinance No. 5630 duly passed by the Council of the City of Brecksville, Ohio, on 6-20, 20 23 and that same was duly posted in accordance with the existing Charter of the City of Brecksville on 6-23, 20 23



CLERK OF COUNCIL

EXHIBIT C

Highland Legal Description

EXHIBIT D

Highland Deed